

[doc. web n. 9935503]
Provision of July 18, 2023
Register of provisions
No. 319 of July 18, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD to the complaint of October 29, 2020, with which Mr. XX reported an alleged
violation of the Regulation by Ms. XX;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISE

1. The investigative activity.

With the complaint of October 29, 2020, Mr. XX complained about the installation, on the external wall
owned by Ms. XX, of a video surveillance system whose cameras were potentially capable of capturing
the public road in both directions.

With the request for information dated December 7, 2021, made pursuant to Article 157 of Legislative
Decree No. 196 of 2003, Code regarding the protection of personal data and notified through the
Special Unit for Privacy Protection and Technological Fraud of the Guardia di Finanza, this
Department initiated the investigation and simultaneously delegated the Unit to carry out the
appropriate checks.

During the inspection carried out on February 24, 2022, the agents noted through photographic
evidence that the two external cameras, positioned on the entrance door of the building at number 25,
were oriented to capture respectively the public road in front of the door and its continuation up to
numbers 27 and 29.

The party, after reporting the presence of a monitor inside the residence, did not comply with the
military's request to view the images captured by the two cameras.

The party also stated that the system "was installed for security reasons, having suffered numerous
thefts over time, as well as threats from less than reputable neighbors, with numerous reports filed."
However, these statements were not supported by any documentation.

Regarding the field of view of the cameras, the party specified that "the two cameras capture
respectively one the public area in front of the entrance door of our residence at number 25, the other
the continuation of the public road up to numbers 27 and 29..."

The party further represented that "the video surveillance system initially recorded images,
subsequently at the request of the Guarantor and a similar request from the local police command, we
called the technician who installed the system, who removed the disk on which the images were
recorded and repositioned the cameras differently."

It was finally represented that "the entrance of the property pertaining to [the] complainant is in no way

included in the images captured by the system in question; regarding the other people living in the building, those interviewed orally at the time agreed to the installation."

2. The initiation of the procedure.

With the communication of May 19, 2022, the Office notified the party of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code regarding the capture of areas not directly pertaining and, in particular, of public spaces and areas where access to third-party residences is located and the related processing of personal data carried out in the absence of an appropriate legal basis in violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, of the Regulation.

The party, informed by the Office of the possibility of submitting defensive writings or documents in relation to the procedure against them, did not submit any documentation, nor did they provide, as requested, indications regarding the measures taken to make the processing compliant with the Regulation, particularly regarding the modification of the field of view of the cameras used solely for areas of strict relevance.

Following the examination of the statements made by the party during the procedure, it is established that, unless the fact constitutes a more serious offense, anyone who, in a procedure before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code, it has been established that Ms. XX has carried out a processing of personal data not compliant with the relevant regulations on personal data protection contained in the GDPR.

3. The legal framework of the processing carried out.

The processing of data carried out through a video surveillance system, if performed by individuals for personal and domestic purposes, falls within the exclusion criteria for the application of data protection regulations as per Article 2, paragraph 2 of the

EU Regulation 2016/679. In this regard, recital no. 18 of the Regulation specifies that an "activity of a purely personal or domestic nature" is one that is carried out without a connection to a commercial or professional activity.

The use of video surveillance systems by individuals in areas of direct interest (such as those related to their home and its appurtenances) is therefore generally considered outside the scope of the material application of data protection provisions, as it falls within the processing carried out for the exercise of activities of a purely personal and domestic nature.

This is provided that the scope of data communication does not exceed the family sphere of the data controller and that the images are not subject to communication to third parties or dissemination, and the processing does not extend beyond the strictly relevant areas of the data controller by capturing images in common areas (including condominium types such as staircases, hallways, parking lots), publicly accessible places (streets or squares), or areas belonging to third parties (gardens, terraces, doors or windows belonging to third parties).

In such circumstances, therefore, the processing carried out must be considered unlawful as it lacks an appropriate legal basis. Only in the presence of actual risk situations can the data controller, based on a legitimate interest, extend the camera coverage to areas that fall outside their exclusive relevance, provided that this is adequately justified and supported by appropriate documentation (e.g., reports, threats, thefts).

In such cases, the data controller is still required to comply with the provisions on personal data protection, as found in Guidelines no. 3/2019 on the processing of personal data through video devices, adopted by the European Data Protection Board, and in the General Provision on video surveillance of April 8, 2010 (available on the Authority's website www.gpdp.it, doc. web 1712680).

In the case at hand, the investigation found that the recording of areas beyond those of relevance occurred in the absence of suitable lawful grounds, considering that the data controller did not demonstrate the existence of a legitimate interest related to an actual risk situation that would have justified such processing.

The processing of personal data subject to this procedure is therefore found to be in violation of Article 5, paragraph 1, letter a) and Article 6 of the Regulation.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

The circumstances represented during the inspection, examined as a whole, although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure, nor can the declaration regarding the alleged different positioning of the cameras (which would have been arranged subsequent to the intervention of the local police and the procedure initiated by the Guarantor) be relevant for the purposes of excluding the prerequisites for the adoption of measures of a prescriptive or prohibitory nature, as per Article 58, paragraph 2 of the Regulation, since this circumstance is not supported by any objective evidence.

For the above reasons, it is deemed necessary to order the data controller, pursuant to Article 58, paragraph 2, letter d), of the Regulation, to adopt the necessary measures to restrict the recording to the only relevant areas, as indicated in point 3 of this decision.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction as provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the party through the video surveillance system, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that the following circumstances have been taken into account for the assessment of the conduct:

- the negligent nature of the violation;
- the degree of responsibility of the party that has not shown evidence of having complied with the regulations on data protection and the general provision on video surveillance adopted by this Authority on April 8, 2010 (available at www.garanteprivacy.it, doc. web no. 1712680), compatible with EU Regulation 679/2016 and with Guidelines no. 3/2019 on the processing of personal data, adopted by the EDPB on July 10, 2019, which provided detailed indications for the correct processing of personal data related to the installation of video surveillance systems by individuals, condominium groups, economic operators, and public institutions;
- the circumstance that the party did not cooperate with

****The Authority during the proceedings, not sending its own defensive writings.****

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €400.00 (four hundred) for the violation of Article 5, paragraph 1, letter a) and Article 6 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante's Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

Finally, it is considered that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

****ALL OF THE ABOVE CONSIDERED, THE GARANTE****

pursuant to Articles 57, paragraph 1, letter a) and 83 of the Regulation, declares the unlawfulness of

the processing carried out by Ms. XX, tax code XX (resident in XX), via XX, ID XX), in the terms set forth in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation;

****ORDERS****

the party:

pursuant to Article 58, paragraph 2, letter d) of the Regulation, to conform the processing carried out through the video surveillance system by ensuring that the camera coverage is limited to the relevant areas and to provide adequately documented feedback pursuant to Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation; to pay the sum of €400.00 (four hundred), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is noted that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

****ORDERS****

pursuant to Article 58, paragraph 2, letter i) of the Regulation to pay the sum of €400.00 (four hundred) as an administrative monetary sanction for the violations indicated in this provision;

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante's Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this provision be communicated and to provide adequately documented feedback pursuant to Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be lodged before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 18, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Scorza

****THE SECRETARY GENERAL****

Mattei